THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o
n the International Mari time Organization concerning the functions of the Marine Enviro
nment Protection Committee conferred upon it by international conventions for the preven
tion and control of marine pollution from ships, RECALLING ALSO article 16 of the Intern
ational Conven tion for the Prevention of Pollution from Ships, 1973, as modified by the
Protocol of 1978 relating thereto (MARPOL), which specifies the amendment procedure and
confers upon the appropriate body of the - from Ships, 1973, as modified by the Protocol
of 1978 relating thereto (MARPOL), which specifies the amendment procedure and confers u
pon the appropriate body of the Organization the function of considering and adopting am
endments thereto, HAVING CONSIDERED, at its seventy -sixth session, proposed amendments
to MARPOL Annexes I and IV concerning the exemption of unmanned non -self-propelled (UNS
P) barges from survey and certification requirements, which were circulated in accordanc
e with article 16(2)(a) of MARPOL, 1 ADOPTS, in accordance with article 16(2)(d) of MARP
OL, amendments to MARPOL Annexes I and IV, the text of which is set out in the annex to
the present resolution; 2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL
, that the amendments shall be deemed to have been accepted on 1 May 2022 unless prior t
o that date not less than one third of the Parties or Parties the combined merchant flee
ts of which constitute not less than 50% of the gross tonnage of the world's merchant fl
eet have communicated to the Organization their objection to the amendments; - not less
than one third of the Parties or Parties the combined merchant fleets of which constitut
e not less than 50% of the gross tonnage of the world's merchant fleet have communicated
to the Organization their objection to the amendments; 3 INVITES the Parties to note tha
t, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter in
to force on 1 November 2022 upon their acceptance in accordance with paragraph 2 above;
4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to tra
nsmit certified copies of the present resolution and the text of the amendments containe
d in the annexes to all Parties to MARPOL; 5 REQUESTS ALSO the Secretary-General to tran
smit copies of the present resolution and its annexes to Members of the Organization whi
ch are not Parties to MARPOL.